

22STCV27283 22STCV27283

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-07-02

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C617%2C07%2F02%2F2026

Source SHA-256: 2f9e1fd6713b26401e78d80b800119176fb27898becfc66487e9ef832ad2ec5f

Case Number: 22STCV27283 Hearing Date: July 2, 2026 Dept: 617

Dept. 617

Date: 7-2-26

Case #: 22STCV27283

Trial Date: 3-1-27

SUMMARY JUDGMENT/ADJUDICATION

MOVING PARTY: Defendant, Phillips 66 Company

RESPONDING PARTY: Plaintiff, Faviola Nino

RELIEF REQUESTED

Motion for Summary Judgment or, in the Alternative, Summary Adjudication

SUMMARY OF ACTION

Plaintiff Faviola Nino has been employed as an operator at Defendant Phillips 66 Company's oil refinery in Wilmington, CA for over a decade. On or about April 23, 2021, Plaintiff suffered a workplace injury when she struck her left thigh on a valve manifold, causing her to twist upon impact and injuring her shoulder, bicep, back, neck and hip. Plaintiff notified Phillips of her injury and it sent her to its workers' compensation provider, Defendant CareOnSite, Inc., for medical treatment.

Plaintiff alleges that instead of receiving medical treatment for her injury, CareOnSite administered a drug test. Plaintiff claims that neither Phillips nor CareOnSite had reasonable suspicion that she had been intoxicated while at work. Following the test, Phillips and CareOnSite demanded Plaintiff to provide them with a prescription for medications detected in the test. Plaintiff alleges that Phillips sent her to CareOnSite to take a drug test, hoping that she would fail so it could use the failed drug test as a pretext for firing her due to her disability. Plaintiff ultimately passed the drug test.

Upon returning to work, Plaintiff still experienced pain and discomfort due to her injury and made multiple requests to Phillips to see its workers' compensation doctors for a second opinion and/or re-evaluation. However, Phillips allegedly ignored these requests and Plaintiff continued working without any restrictions or accommodation, worsening her condition. Plaintiff then decided to use her personal vacation time to heal and seek treatment. Her new doctor placed her on restrictions of no heavy lifting, pushing, or pulling. Plaintiff informed Phillips of these restrictions.

Plaintiff claims that despite Phillips' ability to provide her with available work that she was capable of performing, Phillips refused to allow her to return to work based on an inability to accommodate her medical restrictions. Plaintiff was instead placed on medical leave between August to September 2021. Plaintiff claims that after she made complaints, a Phillips supervisor contacted her in October 2021 and informed her that it was Phillips' policy to keep injured employees on medical leave until they were healed, even though job functions could be performed with work restrictions, to prevent reinjury. Plaintiff alleges that since then, Phillips has kept her on leave despite Plaintiff's continued requests to return to work. She contends that Phillips kept her on leave to force her out of her job due to her disability.

On November 9, 2023, Plaintiff filed a Second Amended Complaint for: (1) Disability Discrimination; (2) Failure to Reasonably Accommodate; (3) Failure to Engage in the Interactive Process; (4) Failure to Take All Reasonable Steps to Prevent Discrimination and Retaliation; (5) Retaliation in Violation of FEHA; (6) Wrongful Termination in Violation of Public Policy; (7) Wrongful Constructive Termination in Violation of Public Policy; (8) Aiding and Abetting in Violation of FEHA; (9) Unlawful Medical Inquiry in Violation of FEHA; and (10) Violation of Constitutional Right to Privacy.

RULING: Granted in part.

Evidentiary Objections: The Court only rules on those objections material to disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).) Phillips' Objections No. 31 and 32 are overruled.

Phillips moves for summary judgment, or in the alternative, summary adjudication as to the first through seventh and ninth through tenth causes of action in Plaintiff's Second Amended Complaint. It argues that Plaintiff's claims fail as a matter of law. It also claims that Plaintiff's prayer for punitive damages has no merit because there is no evidence of oppression, fraud, or malice committed or ratified by a managing agent. Plaintiff opposes the motion, maintaining triable issues of material facts as to her claims. Phillips' motion is granted in part and summary adjudication is granted as to the disability discrimination, failure to accommodate, failure to engage in the interactive process, and invasion of privacy causes of action.

The pleadings frame the issues for motions, "since it is those allegations to which the motion must respond. (Citation.)" (Scolinos v. Kolts (1995) 37 Cal. App. 4th 635, 640-641; FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 382-83; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established." (Code Civ. Proc., § 437c, subd. (p)(2).) "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Ibid.)

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from

that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork.” (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1041 (citation omitted))

First Cause of Action: Disability Discrimination

Phillips argues that Plaintiff’s disability discrimination claim fails because she was not qualified to do her job and Phillips had legitimate, nondiscriminatory reasons for her termination. Again, the Court declines to consider Plaintiff’s unpled theories, including those premised on a “nationwide policy” prohibiting medical personnel from prescribing physical work restrictions to injured employees. (Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1253.) The only alleged policies identified in Plaintiff’s Second Amended Complaint are a policy to keep injured employees on medical leave until they were fully healed and a policy to subject disabled employees to drug testing for the purpose of finding a pretextual reason to fire them. [SAC ¶¶ 31, 37-40.] These are very different from an alleged policy whereby employees were returned to work without restrictions to circumvent the employer’s accommodation obligations under the FEHA. [See Opp. at pp. 10, 13.] The Court therefore analyzes Plaintiff’s and Phillips’ respective burdens based on discrimination theories framed by the amended complaint.

“A prima facie case of disability discrimination under FEHA requires the employee to show he or she (1) suffered from a disability, (2) was otherwise qualified to do his or her job, and (3) was subjected to adverse employment action because of the disability.” (Choochagi v. Barracuda Networks, Inc. (2020) 60 Cal.App.5th 444, 458.)

Phillips has met its burden to show that Plaintiff was not qualified for her position. The essential functions of Plaintiff’s operator position included unloading railcars containing toxic and explosive substances, pulling quart-size sample containers containing these substances, climbing ladders and structures, and opening and closing valves. [Lagunas Decl. ¶¶ 2-3, Ex. E, Ex. A: Plaintiff’s Depo. pp. 35:6-21, 85:24-89:8; Negrotto Decl. ¶ 13.] From September 2021 to April 2022, Plaintiff submitted to Phillips Employee Health Reports and doctor’s notes completed by her physician, Dr. Bradley Thomas, showing that Plaintiff could not walk, operate a motor vehicle or heavy machinery, climb stairs or ladders, work at heights, use a computer, operate foot controls, twist/bend/stoop, squat/kneel/crawl, or lift/push/carry more than 10 pounds. [Compendium Exs. 8-14.] Although from May 2022 to January 2023, these restrictions eased with Plaintiff being allowed to do desk work without restriction, she still could not climb stairs/ladders/work at heights, twist/bend/stoop, or squat/kneel/crawl, and could perform the other activities for no more than 3 hours. [Id. Exs. 15-23.] After January 2023, Dr. Thomas reinstituted all restrictions. [Id. Exs. 24-27.] After reviewing the requests, Bulk Superintendent Khalid Ali and Bulk Process Supervisor Andre Magee determined that the 10-pound restriction alone precluded Plaintiff from performing the essential function of opening and closing valves. [Id. Ex. 1-C: Ali Depo. pp. 91:13-20, 94:3-6, 96:3-17, 125:21-126:33.] There were no administrative tasks or other positions Plaintiff could perform at the refinery. [Id. Ex. 1-C: Ali Depo. pp. 125:21-126:33; Id. Ex. 1-B: Negrotto Depo. p. 121:4-23; Negrotto Decl. ¶ 18, Ex. 3-A.] Phillips has therefore shown that Plaintiff was not qualified for her position or another vacant position and the burden shifts to Plaintiff to raise a triable issue of material fact.

Plaintiff fails to satisfy her burden. She presents no evidence that she was otherwise qualified for her position, instead providing records from her appointment with Dr. Thomas where he noted that Plaintiff could not engage in repetitive pushing/pulling/lifting over 10 pounds and that she would be placed on temporary total disability because her employer was unable to accommodate “lite duty.” [Walker Decl. ¶ 33, Exs. AG-AH.] This does not raise a triable issue because Plaintiff’s weight restriction was the reason she was not qualified as she was unable to perform the essential function of opening and closing valves. Because Plaintiff is unable to establish an element of her discrimination claim, summary adjudication is granted as to this cause of action.

Second Cause of Action: Failure to Reasonably Accommodate

Phillips is also entitled to summary adjudication on the failure to accommodate cause of action. Phillips contends this claim fails because Plaintiff was not qualified for her position. “The elements of a failure to accommodate claim are (1) the plaintiff has a disability under the FEHA, (2) the plaintiff is qualified to perform the essential functions of the position, and (3) the employer failed to reasonably accommodate the plaintiff’s disability.” (Lui v. City and County of S.F. (2012) 211 Cal.App.4th 962, 971.) “As with a FEHA discrimination claim, the plaintiff bears the burden of proving that he or she had the ‘ability to

perform the essential functions of a job with accommodation.” (Id. at p. 971.) As mentioned above, Plaintiff has failed to raise a triable issue as to whether she was qualified to perform the essential functions of her position or another position. Thus, summary adjudication is granted as to this claim.

Third Cause of Action: Failure to Engage in the Interactive Process

Phillips is entitled to summary adjudication as to Plaintiff's failure to engage in the interactive process claim. It argues this cause of action fails because Plaintiff cannot identify a reasonable accommodation. “[T]o succeed on a cause of action for failure to engage in an interactive process, ‘an employee must identify a reasonable accommodation that would have been available at the time the interactive process should have occurred.’” (Shirvanyan v. Los Angeles Community College Dist. (2020) 59 Cal.App.5th 82, 96.) Phillips has met its burden because it has shown that Plaintiff could not perform the essential functions of her position or a vacant position. In response, Plaintiff fails to identify an available reasonable accommodation. Thus, summary adjudication is granted as to this claim.

Fifth Cause of Action: Retaliation in Violation of FEHA

Phillips has failed to meet its burden as to Plaintiff's retaliation claim. Phillips contends that Plaintiff's retaliation claim fails because her termination was due to her inability to perform the essential functions of her position after she exhausted her paid leave (i.e., that the termination was based on a legitimate, nonretaliatory reason). (See Moore v. Regents of Univ. of Cal. (2016) 248 Cal.App.4th 216, 236 [employer may meet burden on summary judgment by either showing one or more prima facie elements lacking or legitimate, nondiscriminatory reason for adverse employment action].) However, Plaintiff asserts multiple retaliation theories based on different purported adverse employment actions in addition to her ultimate termination. This includes forcing her on unnecessary medical leave and refusing to conduct investigations. [SAC ¶ 77.] To meet its burden, Phillips must “negate all liability theories plaintiff alleges.” (Swanson v. Morongo Unified School Dist. (2014) 232 Cal.App.4th 954, 970.) Because Phillips has not done so, it is not entitled to summary adjudication on this claim.

Fourth, Sixth, and Seventh Causes of Action: Failure to Take All Reasonable Steps to Prevent Discrimination and Retaliation, Wrongful Termination in Violation of Public Policy, and Wrongful Constructive Termination in Violation of Public Policy

Phillips fails to meet its burden as to Plaintiff's failure to prevent and wrongful termination causes of action. Phillips argues these claims fall with Plaintiff's discrimination and retaliation claims. An employer cannot be held liable for failing to prevent discrimination or retaliation that never occurred. (Trujillo v. North County Transit Dist. (1998) 63 Cal.App.4th 280, 289.) Similarly, no liability for wrongful termination in violation of public policy can exist where the FEHA policies against discrimination and retaliation are the basis for the claim and such policies are not violated. (Cf. Rope v. Auto-Chlor System of Wash., Inc. (2013) 220 Cal.App.4th 635, 660 [FEHA's policy against discrimination can support claim for wrongful termination in violation of public policy].) However, the failure to prevent claim stands because, as discussed above, Phillips is not entitled to summary adjudication on the retaliation cause of action. The wrongful termination claims also stand because, although duplicative, they are both additionally based on retaliatory acts that Plaintiff alleges constituted “constructive termination.” [SAC ¶¶ 85, 91.] This is true even if Phillips has shown it later actually terminated Plaintiff for nonretaliatory reasons. Phillips is therefore not entitled to summary adjudication on these causes of action.

Ninth Cause of Action: Unlawful Medical Inquiry in Violation of FEHA

Phillips contends that Plaintiff's unlawful medical inquiry cause of action fails because the drug test performed was lawful. For the same reasons discussed in the Court's ruling on CareOnSite's motion, Phillips is not entitled to summary adjudication on this claim because it has not met its burden to show that its drug test was lawful.

Tenth Cause of Action: Violation of Constitutional Right to Privacy

Phillips argues that Plaintiff's invasion of privacy claim fails because she had no reasonable expectation of privacy, she did not suffer a serious invasion of privacy, and Phillips had a legitimate safety reason for drug testing. As explained in the Court's granting of CareOnSite's motion for summary adjudication on this claim, Phillips' motion is likewise granted because it had a legitimate safety interest for the drug test.

Punitive Damages

Phillips is not entitled to summary adjudication as to Plaintiff's claim for punitive damages. Phillips contends that Plaintiff has no claim for punitive damages because she cannot show by clear and convincing evidence that an officer, director, or managing agent of Phillips acted with malice, oppression, or fraud in any action taken against her. However, Phillips presents no evidence in support of its argument, nor does it connect the evidence presented in its separate statement to its argument. It has therefore failed to meet its burden and its motion for summary adjudication as to this claim is denied.

In sum, Phillips is entitled to summary adjudication as to the disability discrimination, failure to accommodate, failure to engage in the interactive process, and invasion of privacy claims.

Phillips to give notice.

Dept.

617

Date:

7-2-26

Case

#: 22STCV27283

Trial

Date: 3-1-27

SUMMARY JUDGMENT/ADJUDICATION

MOVING

PARTY: Defendant, CareOnSite, Inc.

RESPONDING

PARTY: Plaintiff, Faviola Nino

RELIEF

REQUESTED

Motion

for Summary Judgment or, in the Alternative, Summary Adjudication

SUMMARY

OF ACTION

Plaintiff

Faviola Nino has been employed as an operator at Defendant Phillips 66 Company's

oil refinery in Wilmington, CA for over a decade. On or about April 23, 2021, Plaintiff

suffered a workplace injury when she struck her left thigh on a valve manifold,

causing her to twist upon impact and injuring her shoulder, bicep, back, neck

and hip. Plaintiff notified Phillips of her injury and it sent her to its

workers' compensation provider, Defendant CareOnSite, Inc., for medical

treatment.

Plaintiff

alleges that instead of receiving medical treatment for her injury, CareOnSite

administered a drug test. Plaintiff claims that neither Phillips nor CareOnSite

had reasonable suspicion that she had been intoxicated while at work. Following

the test, Phillips and CareOnSite demanded Plaintiff to provide them with a

prescription for medications detected in the test. Plaintiff alleges that

Phillips sent her to CareOnSite to take a drug test, hoping that she would fail

so it could use the failed drug test as a pretext for firing her due to her

disability. Plaintiff ultimately passed the drug test.

Upon

returning to work, Plaintiff still experienced pain and discomfort due to her

injury and made multiple requests to Phillips to see its workers' compensation

doctors for a second opinion and/or re-evaluation. However, Phillips allegedly

ignored these requests and Plaintiff continued working without any restrictions

or accommodation, worsening her condition. Plaintiff then decided to use her

personal vacation time to heal and seek treatment. Her new doctor placed her on

restrictions of no heavy lifting, pushing, or pulling. Plaintiff informed

Phillips of these restrictions.

Plaintiff

claims that despite Phillips' ability to provide her with available work that

she was capable of performing, Phillips refused to allow her to return to work

based on an inability to accommodate her medical restrictions. Plaintiff was

instead placed on medical leave between August to September 2021. Plaintiff

claims that after she made complaints, a Phillips supervisor contacted her in

October 2021 and informed her that it was Phillips' policy to keep injured

employees on medical leave until they were healed, even though job functions could be performed with work restrictions, to prevent reinjury. Plaintiff alleges that since then, Phillips has kept her on leave despite Plaintiff's continued requests to return to work. She contends that Phillips kept her on leave to force her out of her job due to her disability.

On

November 9, 2023, Plaintiff filed a Second Amended Complaint for: (1) Disability Discrimination; (2) Failure to Reasonably Accommodate; (3) Failure to Engage in the Interactive Process; (4) Failure to Take All Reasonable Steps to Prevent Discrimination and Retaliation; (5) Retaliation in Violation of FEHA; (6) Wrongful Termination in Violation of Public Policy; (7) Wrongful Constructive Termination in Violation of Public Policy; (8) Aiding and Abetting in Violation of FEHA; (9) Unlawful Medical Inquiry in Violation of FEHA; and (10) Violation of Constitutional Right to Privacy.

RULING: Granted in part.

Evidentiary

Objections: Because the asserted evidentiary objections are not material to the Court's disposition of the motion, the Court does not rule on them. (Code Civ.

Proc., § 437c, subd. (q).)

CareOnSite

moves for summary judgment, or in the alternative, summary adjudication as to Plaintiff's

causes of action for disability discrimination, aiding and abetting, unlawful

medical inquiry, and violation of constitutional right to privacy. It argues

that each of these claims fail as a matter of law. It further seeks summary

adjudication of Plaintiff's prayer for punitive damages because there is no

clear and convincing evidence that an officer, director, or managing agent of

CareOnSite was guilty of oppression, fraud, or malice. Plaintiff opposes the

motion, maintaining triable issues of material facts as to her claims.

CareOnSite's motion is granted in part and summary adjudication is granted as

to the disability discrimination, aiding and abetting, and invasion of privacy

causes of action as well as the punitive damages claim.

The pleadings frame the issues for motions, "since it is those

allegations to which the motion must respond. (Citation.)" (*Scolinos v. Kolts* (1995) 37 Cal. App.

4th 635, 640-641; *FPI Development, Inc.*

v. Nakashima (1991) 231 Cal.App.3d 367, 382-83; *Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp.* (1994) 29

Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or

summary adjudication "is to provide courts with a mechanism to cut through the

parties' pleadings in order to determine whether, despite their allegations,

trial is in fact necessary to resolve their dispute." (*Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 843.) "Code of

Civil Procedure section 437c, subdivision (c), requires the trial judge to

grant summary judgment if all the evidence submitted, and 'all inferences

reasonably deducible from the evidence' and uncontradicted by other inferences

or evidence, show that there is no triable issue as to any material fact and

that the moving party is entitled to judgment as a matter of law." (Adler

v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"On

a motion for summary judgment, the initial burden is always on the moving party

to make a prima facie showing that there are no triable issues of material

fact." (Scalf v. D.B. Log Homes, Inc.

(2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment

"has met his or her burden of showing that a cause of action has no merit if

the party has shown that one or more elements of the cause of action . . .

cannot be established." (Code Civ.

Proc., § 437c, subd. (p)(2).) "Once the defendant . . . has met that burden,

the burden shifts to the plaintiff . . . to show that a triable issue of one or

more material facts exists as to the cause of action or a defense thereto." (Ibid.)

"When

deciding whether to grant summary judgment, the court must consider all of the

evidence set forth in the papers (except evidence to which the court has

sustained an objection), as well as all reasonable inferences that may be drawn

from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico

Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code

Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a

conflict in the evidence. It is not created by speculation, conjecture,

imagination or guesswork.” (Lyons v. Security Pacific National Bank

(1995) 40 Cal.App.4th 1001, 1041 (citation omitted)

First

Cause of Action: Disability Discrimination

CareOnSite

first argues that Plaintiff’s disability discrimination claim fails because it

did not employ Plaintiff.

CareOnSite’s

own evidence creates a triable issue on whether it is an “employer” under the

FEHA. The FEHA provides that the term “‘employer’ includes any person regularly

employing five or more persons, or any person acting as an agent of an employer,

directly or indirectly” (Gov. Code, § 12926, subd. (d).) This provision

“permits a business entity acting as an agent of an employer to be held

directly liable as an employer for employment discrimination in violation of

the FEHA in appropriate circumstances when the business-entity agent has at

least five employees and carries out FEHA-regulated activities on behalf of an employer." (Raines v. U.S. Healthworks Medical Group (2023) 15 Cal.5th 268, 291.) CareOnSite presents the declaration of its President, Helen Tang, who states that under its Master Professional Services Agreement with Phillips, CareOnSite provided "occupational health care services" for Phillips employees, including "drug and alcohol testing." [Tang Decl. ¶¶ 4-5, Ex. B.] Medical examinations, and particularly drug and alcohol testing, are FEHA-regulated activities. (Gov. Code, § 12940, subd. (f); Cal. Code Regs., tit. 2, § 11071, subd. (d)(2).) CareOnSite therefore fails to meet its burden to show that it is not an employer under the FEHA.

CareOnSite

next contends that the discrimination claim fails because it did not subject Plaintiff to an adverse employment action and did not knowingly administer the drug test for the purpose of Phillips terminating her because of her disability. Framed by her pleadings, Plaintiff's theory of CareOnSite's liability for discrimination is the administration of a post-accident drug test for the purposes of providing a pretext to fire her for her disability. [SAC ¶¶ 19, 37-40.] The Court declines to consider unpled theories, including those based on a "nationwide policy" prohibiting medical personnel from prescribing physical work restrictions to injured employees. (Laabs v. City of

Victorville (2008) 163 Cal.App.4th 1242, 1253.)

“A

prima facie case of disability discrimination under FEHA requires the employee

to show he or she (1) suffered from a disability, (2) was otherwise qualified

to do his or her job, and (3) was subjected to adverse employment action

because of the disability.” (Choochagi v. Barracuda Networks, Inc.

(2020) 60 Cal.App.5th 444, 458.) “An ‘adverse employment action’ is one that ‘materially

affects the terms, conditions, or privileges of employment.” (Doe v. Dept.

of Corrections & Rehabilitation (2019) 43 Cal.App.5th 721, 734.)

This includes “ultimate employment actions such as termination or demotion” as

well as “actions that are reasonably likely to adversely and materially affect

an employee’s job performance or opportunity for advancement.” (Id. at

p. 734.)

CareOnSite

has satisfied its burden to show that it did not subject Plaintiff to an

adverse employment action via its testing. Plaintiff ultimately passed the drug

test, and no action was taken against her due to the test. [Tang Decl. ¶ 10.]

Indeed, the adverse employment action identified in Plaintiff’s amended

complaint is her being forced to remain on medical leave. [SAC ¶ 48.] The

burden therefore shifts to Plaintiff to raise a triable issue of material fact

on this point.

Plaintiff

fails to meet her burden. Plaintiff claims that she suffered an adverse employment action because she was subject to an unlawful medical inquiry in the form of the drug test and request to disclose medical information such as her current prescriptions. But she presents no evidence on the impact this had on the conditions of her employment nor any authority that these actions alone can constitute adverse employment actions. Plaintiff therefore fails to raise a triable issue of material fact and CareOnSite is entitled to summary adjudication on this claim.

Eighth

Cause of Action: Aiding and Abetting in Violation of FEHA

CareOnSite

argues that Plaintiff's aiding and abetting cause of action fails because Phillips did not use the drug test results to terminate Plaintiff because of her disability, CareOnSite had no knowledge of Phillips' alleged scheme to use drug test results to terminate disabled employees, and CareOnSite did not knowingly administer the drug test for the purpose of Phillips terminating her due to her disability.

Under

the FEHA, it is unlawful for “any person to aid, abet, incite, compel, or coerce the doing of any of the acts forbidden under this part, or to attempt to do so.” (Gov. Code, § 12940, subd. (i).) A person is liable under the FEHA for aiding and abetting an employer’s discrimination against an employee only if: (1) the employer subjected the employee to discrimination; (2) the person knew that the employer’s conduct violated the FEHA; and (3) the person gave the employer “substantial assistance or encouragement” to violate the FEHA. (Smith v. BP Lubricants USA Inc. (2021) 64 Cal.App.5th 138, 146.)

CareOnSite

is entitled to summary adjudication on Plaintiff’s aiding and abetting cause of action. Plaintiff alleges that CareOnSite aided and abetted Phillips’ discrimination against her based on her disability. [SAC ¶¶ 98-104.] As explained above, Plaintiff suffered no adverse employment action from the drug test and thus Phillips did not use the test to discriminate against her. Thus, CareOnSite did not aid or abet in discrimination, and it is granted summary adjudication as to this claim.

Ninth

Cause of Action: Unlawful Medical Inquiry in Violation of FEHA

CareOnSite

contends that Plaintiff’s unlawful medical inquiry claim fails because

Plaintiff was not subjected to an unlawful medical examination and Phillips'

legitimate safety interests for suspicionless drug testing of its operators

complied with law.

CareOnSite

fails to meet its burden as to this claim. "An employer or other covered entity

may maintain and enforce rules prohibiting employees from being under the

influence of alcohol or drugs in the workplace and may conduct alcohol or drug

testing for this purpose if they have a reasonable belief that an employee may

be under the influence of alcohol or drugs at work." (Cal. Code Regs., tit. 2,

§ 11071, subd. (d)(2).) CareOnSite presents evidence that it had maintained,

and that Plaintiff was aware of, a post-accident drug testing policy. [Sherrod

Decl. ¶ 3, Ex. A: Plaintiff's Depo. pp. 111:12-114:6.] The same evidence shows

that Plaintiff was subjected to a post-accident drug test following her April

23, 2021 injury. [Ibid.] Nowhere does CareOnSite present evidence that

it or Phillips had a reasonable belief that Plaintiff was under the influence

of alcohol or drugs at work. CareOnSite therefore fails to show that

Plaintiff's post-accident drug test was lawful. CareOnSite cites to Loder v.

City of Glendale to support the legality of its test. But that case is

inapposite because it did not address the legality of drug testing of current

employees as opposed to pre and post-offer testing. (Loder v. City of Glendale

(1997) 14 Cal.4th 846, 865.) CareOnSite is therefore not entitled to summary adjudication as to this claim.

Tenth

Cause of Action: Violation of Constitutional Right to Privacy

CareOnSite

argues that Plaintiff's right to privacy cause of action fails because Plaintiff had no reasonable expectation of privacy under the circumstances and she did not suffer a serious invasion of privacy rights. It further claims that any expectation of privacy is outweighed by Phillips' legitimate safety-related interests for suspicionless drug testing of its operators.

"[A]

plaintiff alleging an invasion of privacy in violation of the state constitutional right to privacy must establish each of the following: (1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) conduct by defendant constituting a serious invasion of privacy." (Hill v. NCAA (1994) 7 Cal.4th 1, 39-40.) "A defendant may prevail in a state constitutional privacy case by negating any of the three elements just discussed or by pleading and proving, as an affirmative defense, that the invasion of privacy is justified because it substantively furthers one or more countervailing interests." (Id. at p. 40.)

CareOnSite

has sufficiently shown that the intrusion on Plaintiff's privacy was justified by Phillips' legitimate safety interests. The advance notice Plaintiff had of the drug-testing program diminished her expectation of privacy and minimized the intrusion on her privacy interests. (Smith v. Fresno Irrigation Dist. (1999) 72 Cal.App.4th 147, 162.) The substance abuse policy provided for post-accident drug testing and Plaintiff testified in her deposition that she had been subject to such testing by CareOnSite for a prior accident. [Sherrod Decl. ¶ 3, Ex. A: Plaintiff's Depo. pp. 111:12-114:6, 118:9-119:21, 120:4-11.] The hazardous environment Plaintiff worked in and the hazards inherent in her work justify Phillips' testing policy. (Smith, supra, 72 Cal.App.4th at p. 166.)

As an operator at Phillips' oil refinery, Plaintiff regularly worked with flammable, explosive, and toxic substances. [Sherrod Decl. ¶ 3, Ex. A: Plaintiff's Depo. pp. 35:6-21, 52:18-53:20, 106:8-109:6.] Plaintiff herself agreed in her deposition that safety was particularly important given the nature of her job. [Id. at p. 110:2-15.] Phillips therefore had a legitimate interest in enforcing a post-accident testing policy to ensure that employees were not impaired at work and to protect Plaintiff and her fellow co-workers. The burden therefore shifts to Plaintiff to raise a triable issue of material fact.

Plaintiff

fails to raise a triable issue of material fact as to the legitimacy of

Phillips' post-accident testing policy. Rather than rebutting Phillips'

assertion of safety interests "by showing there are feasible and effective

alternatives to defendant's conduct which have a lesser impact on privacy

interests," Plaintiff focuses on the illegality of the testing. (Smith, supra,

72 Cal.App.4th at p. 159.) But the mere fact that the testing program violates

FEHA is insufficient. (All of US or None-Riverside Chapter v. Hamrick

(2021) 64 Cal.App.5th 751, 800-01 [statutory violations do not establish

violation of privacy as a matter of law].) Plaintiff has therefore failed to

meet her burden and CareOnSite is entitled to summary adjudication as to the

invasion of privacy cause of action.

Punitive

Damages

CareOnSite

moves for summary adjudication as to Plaintiff's claim for punitive damages on

the basis that there is no clear and convincing evidence that an officer,

director, or managing agent of CareOnSite was guilty of oppression, fraud, or

malice against Plaintiff.

Summary

adjudication may be granted as to a claim for punitive damages only if it

completely disposes of the entire claim. (Code Civ. Proc., § 437c, subd.

(f)(1).) A claim for punitive damages requires clear and convincing evidence “that

the defendant has been guilty of oppression, fraud, or malice” in the

commission of a tort. (Civ. Code, § 3294, subd. (a).) “Malice” is “conduct

which is intended by the defendant to cause injury to the plaintiff or

despicable conduct which is carried on by the defendant with a willful and

conscious disregard of the rights or safety of others.” (Id. § 3294,

subd. (c)(1).) “Oppression” is “despicable conduct that subjects a person to

cruel and unjust hardship in conscious disregard of that person's rights.” (Id.

§ 3294, subd. (c)(2).) Despicable conduct is conduct that is “so vile,

base, contemptible, miserable, wretched or loathsome that it would be looked

down upon and despised by ordinary decent people.” (Scott v. Phoenix

Schools, Inc. (2009) 175 Cal.App.4th 702, 715.) “Such conduct has been

described as ‘[having] the character of outrage frequently associated with

crime.’” (Id. at p. 715.)

An

employer is not liable for punitive damages based on the acts of an employee “unless

the employer had advance knowledge of the unfitness of the employee and

employed him or her with a conscious disregard of the rights or safety of

others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b).)

The

remaining cause of action that can form the basis for Plaintiff’s punitive damages claim against CareOnSite is her cause of action for unlawful medical inquiry. Tang states in her declaration that CareOnSite “did not knowingly administer Plaintiff’s April 23, 2021 drug test for the purpose of Phillips 66 terminating her because of her disability” nor did it have knowledge that Phillips was engaged in such a scheme. [Tang Decl. ¶¶ 10, 12.] CareOnSite thus sufficiently shows lack of ratification of any scheme to discriminate against Plaintiff via the drug test. Plaintiff presents no argument on this point in opposition and the Court declines to make the argument for her. (Badie v. Bank of America (1998) 67 Cal.App.4th 779, 784-85 [“When [a party] fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”].)

CareOnSite is thus entitled to summary adjudication as to Plaintiff’s punitive

damages claim against it.

In

sum, CareOnSite's motion for summary adjudication is granted as to the

disability discrimination, aiding and abetting, and invasion of privacy causes

of action as well as Plaintiff's claim for punitive damages.

CareOnSite

to give notice.